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Renewal of Tenancy Agreement - Evan Rosner - 10-585 Corydon ave

1 message

Evan Rosner <evanroz@gmail.com>

Tue, Jul 4, 2023 at 1:41 PM

To: Darren Wilcox <Darren.Wilcox@myplace.ca>

Dear Mr. Wilcox,

I hope this letter finds you in good health and high spirits. I am writing to express my agreement to the renewal of the tenancy agreement for my apartment at 10-585 Corydon Ave. I would also like to extend my congratulations to the entire team at Thorwin Properties for their recent victory in the rent increase dispute. A 32.30% rent increase for an unrenovated suite during a rent freeze year is a very impressive accomplishment!

While I appreciate the efforts made by the Deputy Commissioner of the Residential Tenancies Commission to reach a fair decision, I must admit that I am disappointed with the outcome. It is disheartening to learn that, 'most of the evidence and submissions provided were deemed irrelevant to the crucial questions necessary to decide on the appeal.' Photographic evidence, a neat table of the landlord's history of rent increase above guidelines, and commentary on the socioeconomic reality facing Manitobans were simply not enough to persuade our government's agents.

Nonetheless, I would like to take this opportunity to acknowledge the skills and determination of Thorwin Properties in achieving their desired rent increase. It usually takes exceptional acumen and persuasive arguments to succeed in such matters, and your accomplishment is certainly commendable especially when considering that none of the arguments I made were directly addressed and responded to during our hearing.

The rent freeze was enacted with the intention of safeguarding tenants from exorbitant increases, and it is regrettable that circumvention of this legislation has occurred through capital expenditures. This practice, in my view, raises ethical concerns as it undermines the very legislation designed to protect

tenants like myself. It highlights a pervasive issue in the socio-economic state of our world, where corporate interests often prevail over the rights and well-being of individuals.

The table from my appeal displays historic rent increases, which further underscores the widening disparity between tenants' financial capacity and the escalating costs of living. Despite being approved by a government agency, the undeniable reality of this injustice cannot be ignored and yet it has.

I would like to emphasize that my decision to agree to the renewal of the tenancy agreement does not signify my acceptance of the aforementioned practices. As a tenant, I have always strived to be an excellent resident, respectful of the property and considerate of my neighbors. I will continue to uphold these standards during the forthcoming tenancy period, just as I have since becoming a resident prior to Thorwin Properties' ownership.

In conclusion, congratulations once again on your victory. I hope that this letter conveys my genuine desire to maintain a cordial and professional relationship moving forward, despite my concerns regarding the recent decision. I trust that the upcoming tenancy period will be mutually beneficial and that future resolutions will reflect a more equitable and just approach to tenant-landlord relations.

Thank you for your attention to this matter. Please feel free to contact me if there are any further details or documentation required.

Yours sincerely,

Evan Rosner

Form 4

Renewal of Tenancy Agreement

Note to Tenant:

You may continue to occupy your rental unit. If you want to renew your tenancy agreement, you must sign this form and return it to the landlord by: **July 31, 2023**.

If the landlord has applied for, or plans to apply for, a rent increase above the guideline, you may sign this agreement and still have the right to end your tenancy with notice of two rental payment periods. Your right to give notice is in effect from the date you receive notice that the landlord is applying for a rent increase above the guideline until 14 days after you receive a decision from the Residential Tenancies Branch or Residential Tenancies Commission.

This Renewal Agreement is made in duplicate between:

Thorwin Properties, 1274 Archibald Street, Winnipeg, MB R2J 0Z3; (204) 222 - 2422, the Landlord
Legal name, address and telephone number of landlord

and

Evan Rosner, the Tenant.
Name of tenant

The landlord and tenant agree to renew the Tenancy Agreement respecting the rental unit located at:

10 - 585 Corydon Avenue, Winnipeg, MB R3L 0P3
Address

for a fixed term beginning on October 1, 2023 and ending on September 30, 2024
Date Date

at the following rent:

	Effective October 1, 2023	Effective July 1, 2024
Basic Rent:	\$1218.00	\$1340.00
For 0 parking stalls:	\$0.00	\$0.00
Other (specify):		
Rent Payable:	\$1218.00	\$1340.00
Less Rent Discount:	\$193.00	\$140.00
Actual Amount Tenant Must Pay:	\$1025.00	\$1200.00

(Complete this section if a rent increase on the rental unit is due before the date this agreement ends.)

_____ The landlord plans to increase the rent by the annual rent increase guideline on _____. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.

✓ _____ The landlord plans to apply for a rent increase above the guideline to increase the rent on July 1, 2024. The proposed Rent Payable will be \$1340.00. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.

(Complete this section if there is a rent discount,)

***Rent Discount:**

A landlord is not required to offer a rent discount, but if a discount is given, it must be set out in writing. Reducing or removing a rent discount is not considered a rent increase under *The Residential Tenancies Act*. However, an unconditional discount cannot be reduced or removed unless the tenant receives written notice of at least 3 months. If a tenancy agreement or discount agreement is for a fixed term, a landlord cannot reduce or remove an unconditional discount during the term of the agreement. If a discount is subject to a condition, e.g. paying the rent on time, the landlord can withdraw it without notice if the tenant does not meet the condition.

The landlord is offering a rent discount of \$140.00 subject to the following conditions:

Rent is paid in full and on time every month.

(Provide details of any conditions – add additional pages if necessary)

_____ Discount is the same as last year's or increased by \$

_____ Discount is reduced by \$

_____ Discount is removed.

✓ _____ The proposed Rent Payable is subject to an application to the Residential Tenancies Branch for an above-guideline rent increase. The discount may be reduced or removed depending on the final decision on the landlord's application in any event, the Actual Amount Tenant Must Pay will not exceed **\$1200.00**

Signatures

_____	Thorwin Properties	_____
Date	Print name of landlord	Signature of landlord
<u>July 2, 2023</u>	Evan Rosner	<u>Evan Rosner</u>
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of guarantor	Signature of guarantor

Note: If the unit is registered as a condominium, the unit may be sold. If it is sold and the purchaser wants to move in, the tenant may be given notice to move, subject to this agreement and any rights the tenant may have under *The Condominium Act*.